

STATE OF NEW YORK

9928--A

Cal. No. 930

IN SENATE

April 16, 2026

Introduced by Sens. SALAZAR, MURRAY, ROLISON -- read twice and ordered printed, and when printed to be committed to the Committee on Crime Victims, Crime and Correction -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the executive law, in relation to the rights of sexual assault survivors during the investigative process and establishing a task force to study and assess sexual assault survivors' rights and services

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 642 of the executive law, as added by chapter 94 of the laws of 1984, subdivision 1 as amended by chapter 193 of the laws of 2006, subdivision 2-a as amended by chapter 301 by the laws of the 1991, paragraph (a) of subdivision 2-a as amended by chapter 320 of the laws of 2006, subdivision 3 as amended by chapter 893 of the laws of 1986, subdivision 5 as amended by chapter 263 of the laws of 1986 and subdivision 6 as added by chapter 468 of the laws of 2025, is amended to read as follows:

§ 642. Criteria for fair treatment standards. Such fair treatment standards shall provide that:

1. The victim of a violent felony offense, a felony involving physical injury to the victim, a felony involving property loss or damage in excess of two hundred fifty dollars, a felony involving attempted or threatened physical injury or property loss or damage in excess of two hundred fifty dollars or a felony involving larceny against the person shall, unless ~~[he or she]~~ the victim refuses or is unable to cooperate or ~~[his or her]~~ the victim's whereabouts are unknown, be consulted by the district attorney in order to obtain the views of the victim regarding disposition of the criminal case by dismissal, plea of guilty or trial. In such a case in which the victim is a minor child, or in the case of a homicide, the district attorney shall, unless the family refuses or is unable to cooperate or ~~[his, her or their]~~ the victim's

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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1 whereabouts are unknown, consult for such purpose with the family of the
2 victim. In addition, the district attorney shall, unless ~~[he or she]~~ the
3 victim's (or, in the case in which the victim is a minor child or a
4 victim of homicide, ~~[his or her]~~ the victim's family) refuses or is
5 unable to cooperate or ~~[his, her or their]~~ the victim's whereabouts are
6 unknown, consult and obtain the views of the victim or family of the
7 victim, as appropriate, concerning the release of the defendant in the
8 victim's case pending judicial proceedings upon an indictment, and
9 concerning the availability of sentencing alternatives such as community
10 supervision and restitution from the defendant. The failure of the
11 district attorney to so obtain the views of the victim or family of the
12 victim shall not be cause for delaying the proceedings against the
13 defendant nor shall it affect the validity of a conviction, judgment or
14 order.

15 2. The victims and other prosecution witnesses shall, where possible,
16 be provided, when awaiting court appearances, a secure waiting area that
17 is separate from all other witnesses.

18 ~~[2-a.-(a)]~~ 3. For the purposes of this section, a "sexual assault
19 survivor" or "survivor" shall mean the victim of a crime under article
20 one hundred thirty or section 255.25, 255.26 or 255.27 of the penal law.

21 4. All police departments, as that term is defined in subdivision a of
22 section eight hundred thirty-seven-c of this chapter, district attor-
23 neys' offices and presentment agencies, as that term is defined in
24 subdivision twelve of section 301.2 of the family court act, shall
25 provide a private setting for interviewing ~~[victims of a crime defined~~
26 ~~in article one hundred thirty or section 255.25, 255.26 or 255.27 of the~~
27 ~~penal law]~~ sexual assault survivors. For purposes of this subdivision,
28 "private setting" shall mean an enclosed room from which the occupants
29 are not visible or otherwise identifiable, and whose conversations
30 cannot be heard, from outside such room. Only (i) those persons directly
31 and immediately related to the interviewing of a particular ~~[victim]~~
32 survivor, (ii) ~~[the victim, (iii)]~~ a social worker, rape crisis counse-
33 lor, psychologist or other professional providing emotional support to
34 the ~~[victim]~~ survivor, unless the ~~[victim]~~ survivor objects to the pres-
35 ence of such person and requests the exclusion of such person from the
36 interview or interviews, and ~~[(iv)]~~ (iii) where appropriate, the parent
37 or parents of the ~~[victim]~~ survivor, or a support person of the survi-
38 vor's choosing, if requested by the ~~[victim]~~ survivor, shall be present
39 during the interview or interviews of the ~~[victim]~~ survivor. Before
40 conducting a substantive interview of the survivor, a law enforcement
41 official shall verbally inform the survivor of the right to have such
42 persons present.

43 ~~[(b)]~~ 5. Before conducting a substantive interview of a sexual
44 assault survivor, a police department or law enforcement agency shall
45 inform the survivor that the survivor may request that the primary
46 interviewer be of a particular gender. The police department or law
47 enforcement agency shall make reasonable efforts to accommodate such
48 request, including, where practicable, seeking assistance from another
49 police department or law enforcement agency. If the police department or
50 law enforcement agency is unable to fulfill this request, the police
51 department or law enforcement agency shall make reasonable efforts to
52 ensure at least one approved person in the interview room, in addition
53 to the survivor, is the gender that the survivor is requesting.

54 6. All police departments, as that term is defined in subdivision a of
55 section eight hundred thirty-seven-c of this chapter, shall provide
56 ~~[victims of a crime defined in article one hundred thirty of the penal~~

1 ~~law~~] sexual assault survivors with the name, address, and telephone of
2 the nearest rape crisis center in writing.

3 ~~[3-]~~ 7. Law enforcement agencies and district attorneys shall promptly
4 return property held for evidentiary purposes unless there is a compel-
5 ling reason for retaining it relating to proof at trial.

6 ~~[4-]~~ 8. The victim or witness who so requests shall be assisted by law
7 enforcement agencies and district attorneys in informing employers that
8 the need for victim and witness cooperation in the prosecution of the
9 case may necessitate absence of that victim or witness from work. In
10 addition, a victim or witness who, as a direct result of a crime or of
11 cooperation with law enforcement agencies or the district attorney in
12 the investigation or prosecution of a crime is unable to meet obli-
13 gations to a creditor, creditors or others should be assisted by such
14 agencies or the district attorney in providing to such creditor, credi-
15 tors or others accurate information about the circumstances of the
16 crime, including the nature of any loss or injury suffered by the
17 victim, or about the victim's or witness' cooperation, where appropri-
18 ate.

19 ~~[5-]~~ 9. Victim assistance education and training, with special consid-
20 eration to be given to victims of domestic violence, sex offense
21 victims, elderly victims, child victims, and the families of homicide
22 victims, shall be given to persons taking courses at state law enforce-
23 ment training facilities and by district attorneys so that victims may
24 be promptly, properly and completely assisted.

25 ~~[6-]~~ 10. A victim of an assault may choose to make their statement at
26 their workplace provided such workplace was the scene of the assault and
27 is a hospital, emergency medical facility, nursing home, or residential
28 health care facility as defined in section twenty-eight hundred one of
29 the public health law, or is a facility or hospital as defined in
30 section 1.03 of the mental hygiene law. Law enforcement officers shall
31 inform the victim of their right to have their statement be taken at
32 such workplace when officers have reason to believe the victim was
33 assaulted pursuant to section 120.05 of the penal law.

34 § 2. The executive law is amended by adding a new section 637 to read
35 as follows:

36 § 637. Sexual assault survivors task force. 1. A sexual assault survi-
37 vors task force is hereby established to study, evaluate and determine
38 the rights of sexual assault victims and the services available to them.

39 2. The task force shall include no more than fifteen members, selected
40 and staffed, unless otherwise indicated, by the office of victim
41 services, the department of criminal justice services, and the depart-
42 ment of health, and shall consist of:

43 (a) the director of the office of victim services, or the director's
44 designee;

45 (b) the commissioner of criminal justice services, or the commission-
46 er's designee;

47 (c) the commissioner of health, or the commissioner's designee;

48 (d) a survivor of sexual assault who is a resident of New York state;

49 (e) a representative of rape crisis centers;

50 (f) a representative of the state department of education, whose occu-
51 pational duties include the provision of direct services to victims of
52 sexual assault;

53 (g) a representative of an organization that provides services, educa-
54 tion, or outreach to communities of color or immigrant communities;

1 (h) a representative of an organization that provides services, educa-
2 tion, or outreach to lesbian, gay, bisexual, and transgender individ-
3 uals; and

4 (i) other individuals or representatives selected by the office.

5 3. The task force shall:

6 (a) recommend methods to develop and implement an effective mechanism
7 for submitting, tracking and investigating complaints regarding the
8 handling of, or response to, a sexual assault report or investigation by
9 any agency or organization involved in the response;

10 (b) determine the need for additional services across New York state
11 for survivors of sexual assault, and if such a need does exist, the task
12 force shall create a plan for how the state can provide additional sexu-
13 al assault services to meet the needs identified, and determine the cost
14 of funding such a plan; and

15 (c) examine the need to maintain the task force after the final report
16 is issued.

17 4. The members of the task force shall receive no compensation for
18 their services, but shall be allowed their actual and necessary expenses
19 incurred in the performance of their services.

20 5. The task force shall collect data regarding access to sexual
21 assault survivor services, access to support during the investigative
22 process by law enforcement for those that report a sexual assault, and
23 any other data important for its deliberations and recommendations. The
24 task force shall collect feedback from survivors of sexual assault,
25 stakeholders, practitioners, leadership throughout the state, victim
26 services providers and health care communities to inform development of
27 future best practices or clinical guidelines regarding the care and
28 treatment of survivors.

29 6. No later than eighteen months after the effective date of this
30 section, the task force shall provide a report containing the results of
31 the study, including assessments, developments, and recommendations, to
32 the governor, attorney general, temporary president of the senate, the
33 minority leader of the senate, the speaker of the assembly, and the
34 minority leader of the assembly. The task force shall also make the
35 report public by posting a copy on the website of the office.

36 7. The task force shall be reconvened on an ongoing basis every five
37 years in perpetuity, or until it is determined that the provisions of
38 this section have been effectively implemented to ensure the rights of
39 all survivors in New York state.

40 § 3. Paragraph (a) of subdivision 4 of section 840 of the executive
41 law, as added by chapter 506 of the laws of 2011, is amended to read as
42 follows:

43 (a) Develop, maintain and disseminate, in consultation with rape
44 crisis centers experienced in assisting victims in this state, written
45 policies and procedures consistent with applicable provisions of the
46 family court act, domestic relations law, criminal procedure law and the
47 penal law, regarding the investigation of and intervention by new and
48 veteran police officers in crimes involving sexual assault. Such poli-
49 cies and procedures shall make provisions for education and training of
50 new and veteran police officers in the investigation and enforcement of
51 crimes involving sexual assault under state law, including but not
52 limited to:

53 (1) **trauma-informed, evidence-based** techniques for interviewing **and**
54 **interacting with** sexual assault victims,

55 (2) fair treatment standards for crime victims pursuant to article
56 twenty-three of this chapter,

1 (3) evidence gathering and evidence preservation, and
2 (4) dissemination of information concerning availability of local
3 services for the victims of such crimes; and
4 § 4. This act shall take effect immediately.